

STATE OF NEW YORK

8494--A

2025-2026 Regular Sessions

IN SENATE

September 3, 2025

Introduced by Sen. LIU -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Labor in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to permitted leaves of absence for members of civil air patrol

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivisions 1, 2 and 4 of section 202-1 of the labor law,
2 as added by chapter 393 of the laws of 2014, paragraph (a) of subdivi-
3 sion 2 as amended by chapter 376 of the laws of 2014, are amended to
4 read as follows:
- 5 1. During the time that an emergency exists following a declaration of
6 such emergency pursuant to section twenty-four or twenty-eight of the
7 executive law, or during a United States Air Force assigned mission, an
8 employee may request and shall be granted a leave of absence from [~~his~~
9 ~~or her~~] their employer while engaged in the actual performance of [~~his~~
10 ~~or her~~] the employee's duties as, (a) a volunteer firefighter, [~~or~~] (b)
11 an enrolled member of a volunteer ambulance service pursuant to article
12 thirty of the public health law, or (c) a member of the United States
13 Air Force Auxiliary Civil Air Patrol or the United States Coast Guard
14 Auxiliary Pilots unless the employer determines that the employee's
15 absence would impose an undue hardship on the conduct of the employer's
16 business as defined by paragraph (d) of subdivision ten of section two
17 hundred ninety-six of the executive law.
- 18 2. Subdivision one of this section shall apply only when:
- 19 (a) The employer has previously received written documentation from
20 the head of the employee's volunteer fire department or volunteer ambu-
21 lance service or unit commander, as applicable, notifying the employer
22 of the employee's status as a volunteer firefighter or member of a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 volunteer ambulance service or member of the United States Air Force
2 Auxiliary Civil Air Patrol or the United States Coast Guard Auxiliary
3 Pilots; and

4 (b) The employee's duties as a volunteer firefighter [~~or~~], member of a
5 volunteer ambulance service, or member of the United States Air Force
6 Auxiliary Civil Air Patrol or the United States Coast Guard Auxiliary
7 Pilots are related to the declared emergency; and

8 (c) In the case of members of the United States Air Force Auxiliary
9 Civil Air Patrol or the United States Coast Guard Auxiliary Pilots, upon
10 written request from a unit commander to participate in emergency
11 services or during a United States Air Force assigned mission.

12 4. Upon the employer's request, an employee who has been granted a
13 leave of absence in accordance with this section shall provide [~~his or~~
14 ~~her~~] their employer with a notarized statement from the head of the
15 volunteer fire department or volunteer ambulance service, or unit
16 commander, as applicable, certifying the period of time, or times, that
17 said employee responded to any emergency pursuant to this section.

18 § 2. This act shall take effect immediately.